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|    |                                                           | <p>If counsel files a proof of proper service prior to the hearing, the motions will be granted. Otherwise, they will be continued for service of the motion papers on Plaintiff – along with service of notice of continuance on Plaintiff and Defendants.</p> <p>If the required proof of service is filed, the court will interlineate the new trial date into the proposed orders and will signed the amended orders.</p> <p>Upon the signing of the orders, counsel shall serve the signed orders on both Defendants and all parties that have appeared. Counsel will be relieved as counsel of record for each of Defendants effective upon the filing of the proofs of service of the signed orders upon both of them and all other parties.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 13 | <p>Polsky vs. MCAP Holdings, LLC</p> <p>2022-01287078</p> | <p>Motion to Compel Further Responses to Form Interrogatories / Motion to Compel Production</p> <p>The motion by Plaintiff Andrew Polsky, derivatively on behalf of MCAP Holdings, LLC for an order compelling Defendant MCAP Holdings, LLC (“MCAP”) to provide substantive answers to form interrogatories, set one, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, and the motion by Plaintiff Andrew Polsky for an order compelling MCAP to provide substantive answers to request for production, set one, compelling MCAP to produce documents responsive to the requests, and imposing sanctions, jointly and severally against MCAP and its counsel of record, Steve Buchwalter, are moot.</p> <p>There is no dispute MCAP served supplemental responses to the form interrogatories on June 7, 2026 and to the requests for production on May 22, 2026. There is also no dispute MCAP also produced documents on May 22, 2026. Accordingly, the motions are moot.</p> <p>The Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).) The Court “shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with</p> |

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|    |                                     | <p>substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Ct., Rule 3.1348(a).)</p> <p>MCAP did not show MCAP acted with substantial justification or that the imposition of sanctions would be unjust as to the motion to compel further responses to form interrogatories. MCAP showed MCAP needed time to review documents and provide substantive further responses to the requests for production. No sanctions are warranted at this time for the motion to compel further responses to requests for production.</p> <p>MCAP shall pay monetary sanctions in the amount of \$2,925 to Rutan &amp; Tucker, LLP within 30 days.</p> <p>Whether MCAP shall be compelled to produce the documents listed in MCAP’s privilege log should be determined in a properly noticed motion after the parties meet and confer.</p> <p>Plaintiff shall give notice.</p> |
| 14 | Roche vs. Frey<br><br>2024-01373203 | <p>Motion for Bifurcation</p> <p><b>Continued to 11/16/2026</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |